Section

RENT ACT, 2014

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ISSN 0796-0298

Supplement "C" **to** *The Gambia Gazette No.15* **of** ***16th October, 2014***

Rent Act, 2014

THE GAMBIA

NO. 10 OF 2014

Assented to by The President,

this 9th day **of** October, 2014

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YAHYA A. J. J. JAMMEH *President*

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AN ACT torepeal the Rent **Tribunal (Establishment)** Act **2010 to establish a law to regulate and exercise control on rental properties** in **The Gambia and for connected matters**.

{**9th** October, 2014}

ENACTED by the President and the National Assembly.

PARTI - PRELIMINARY

1. Short title

This Act may be **cited as** the Rent Act**, 2014**.

2. Interpretation

In this Act, unless the **context otherwise requires-**

"administrative area" means an administrative area as defined in the Local Government Act;

[cap.33.01]

"Chairperson" means the Chairperson of **a tribunal** appointed **under section 4;**

"**landlord" includes any person who has a right** to **enforce payment of a rent or a person** to **whom a tenant pays** rent **for the occupation** of **a property** to which this Act **applies**;

"**Minister" means the** Attorney General **and Ministerof Justice**;

"property" includes any **compound**, **house**, **flat, room** or **premises to** which **this Act applies**;

"rent" includes monies paid by a tenant to a landlord for the occupation of a property for a **given period as agreed upon by the landlord and the tenant**;

"tenant" includes a **person** occupying, **on payment of rent**, **any property to which this Act applies**; **and**

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"Tribunal" means a Tribunal established under section 4.

3. Application

This Act shall apply to all rental premises in The Gambia whether domestic, commercial or tourist accommodation.

PART II- ESTABLISHEMNT OF RENT TRIBINALS AND APPOINTMENT OF REGISTRARS

4. Establishment of Rent Tribunals

(1) The Attorney General may establish by notice published in the gazette, a Rent Tribunal established in each administrative area.

The Chairperson of a Tribunal shall be appointed by the Minister after consultation with the Chief Justice.

(3) The other members of a Tribunal shall be appointed by the Minister after consultation with the Public Service Commission.

5. Composition of a Tribunal

(1) A Tribunal shall be presided over by a First Class Magistrate as Chairperson and a panel of two other members.

(2) Officers of the Magistrate's Court appointed under section 24 of the Courts Act shall be the officers of the Tribunal.

[cap.6.01]

(3) The officers of the Tribunal —

(a)

may exercise such powers and perform such

duties, in so far as they are applicable to the business of the Tribunal, as those exercised or performed by them in the Magistrate's Court; and

(b) are subject to the same liabilities and penalties and have the same protections as attach by virtue of the Courts Act to a person exercising or performing similar powers or duties under that Act.

6. Registrar of a Tribunal

The Minister shall appointfor each Tribunal, a Registrar who shall -

(a) keep an up to date register of all rented properties within the jurisdiction of the Tribunal;

(b) keep an up to date register of the personal details of all landlords within the jurisdiction of the Tribunal;

(c) receive and register all complaints filed with the Tribunal; and

(d) compile and send a return of all rental premises and landlords within the jurisdiction of the Tribunal to the Gambia Revenue Authority at the end of every year.

7. Functions of a Tribunal

A Tribunal shall be responsible for-

(a) ensuring compliance by landlords and tenants with the provisions of this Act;

(b) monitoring the implementation of the provisions of this Act; and

(c) adjudicating disputes between landlords and tenants.

8. Tenure of office

(1) The members of a Tribunal shall hold office for a period of three years effective from the date of their appointment and **are eligible for re-appointment**.

(2) Where the office of a member falls vacant otherwise than **by the expiry of his or her term of office, or where a member is for any reason incapable of performing his or her duties**, **the Minister shall appoint another person with the requisite qualifications to hold office for the unexpired residue of the term of office of such person.**

9. Disclosure of **interest**

Where a member of a Tribunal has a **personal interestin a matter that is before the Tribunal, he or she shall disclose to**

the Tribunal the nature and extent of his or her interest and shall withdraw from the proceedings of the tribunal.

10. Remuneration

The Chairperson and members of a Tribunal shall be **paid such remuneration as may be determined by the Attorney General**.

11. Proceedings and examination of witnesses

(1) The proceedings of a Tribunal shall be held in public, **unless the Tribunal with the consent of the parties**,**decide otherwise.**

(2) A Tribunal shall, **in carrying out its duties**, **have the power to examine witnesses on oath and summon any person to give evidence or**

produce any document which it considers relevant.

PART III-**REGISTER OF RENTAL PREMISES**

12. **Register of rental premises**

(1) **Every Landlord shall register his or her rental premises using the form prescribed in schedule** 1, **with the Registrar of the Tribunal within the jurisdiction his or her premises** is **situated on payment of the** fees **prescribed in Schedule** II**.**

(**2) The Registrar shall keep a register of all rental premises and shall make the register available for inspection in such place and manner as the Tribunal may direct**.

(3) The register shall contain-

(a) the name, address and tax identification number (TIN)
of the land lord;

(a) the date of registration of the property;

(b) the name and tax identification number (TIN)of the tenant if the premises is occupied;

(c) the rent **charged on the rented property**;

(d) currency in which rent is charged;

(g) the specifications and location **of the property; and**

(h) such other particulars with regard to the tenancy as
the Tribunal may consider relevant.

(4) A Tribunal shall not hear a complaint from a landlord -

(a) whose rented premises has not been registered under this Act; or

(b) who does not produce evidence of his or her tax return on the premises for the preceding year.

(5) A person who lets a property which is not registered under this Act commits an offence.

PART IV - TERMS OF TENANCY AGREEMENTS

13.Implied covenants

(1) Subject to the expressed provisions of a tenancy agreement, it is the responsibility of every tenant -

(a) to pay rent on the due date and a condition for forfeiture for nonpayment of rent fourteen days after such rent is due;

(b) to afford the landlord access to the property and all reasonable facilities for executing therein any repairs which the landlord is entitled to execute;

(c) to deliver the premises to the landlord in a tenantable state at the expiration of his or hertenancy;

(d) to repair and replace all damage to the property, except for reasonable wear and tear; and

(e) not to make any alteration or addition without the written consent of the landlord.

(2) A tenancy is deemed terminated if-

(a) vacant possession is delivered up;

(b) the landlord determines the tenancy for failure to pay

rent or for breach of any other covenant or condition which under any provision of law would have been a cause of forfeiture or termination;

(c) a notice of termination is issue under section 14.

14. Notice of termination

(1) A Landlord or tenant may terminate a tenancy by notice in writing, specifying the date at which the tenancy is to come to an end.

(2) Notwithstanding sub-section (1), a person who gives the notice may withdraw the notice before the tenancy comes to an end.

(3) A notice under subsection (1) shall not have effect unless-

(a) in the case of a weekly tenancy, the notice is given not less than one month;

(b) in the case of a monthly tenancy, the notice is given not less than one month; and

(c) in the case of a yearly tenancy, the notice is given not less than three months,

before the date of termination specified in the notice.

(4) Where a tenancy is for a period exceeding one year and the rent is payable as a lump sum or in parts whether quarterly, annually or otherwise, it shall be construed as a yearly tenancy and the period of notice prescribed in sub-section (3) (c) shall apply.

15. Power of a Tribunal in relation to notices

(1) Where a notice of termination of a tenancy is served on a

tenant under section 14 and the date of termination specified in the notice has not expired, the tenant may apply to a Tribunal for the extension of the termination date.

(2) An application made under subsection (1) shall state the reasons for the application.

(3) Where an application is made under this section, the notice of termination to which the application relates shall not have effect before the determination of the application, unless the application is withdrawn.

(4) On an application under this section, the Tribunal may, after-

(a) making such inquiry as it thinks fit; and

(b) giving to each party an opportunity of being heard or, at his option, of submitting representations in writing,

make an order extending the notice of termination to such period, not exceeding one month from the date on which the notice of termination by the landlord would have effect, as may be specified in the order.

(5) If the Tribunal refuses to make an order under sub-section (4)-

(a) the notice of termination shall not have effect before the expiry of seven days from the determination of the application or the expiry of the date specified in the notice of termination, whichever is later; and

(b) no subsequent application under this section shall be made in relation to the same notice of termination.

(6) Where a Tribunal refused to make an order on an application under this section, or a tenant, after the expiry of the termination date refuses to give up possession of a property, the Tribunal may, on an application by the landlord,

make an ejectment order against the tenant.

(7) An ejection order under sub-section (6) shall be executed by the Inspector General of Police or such other person as a Tribunal may appoint for that purpose.

16. Payment of arrears of rent

Where a tenant defaults in the payment of rent, a landlord may make an application to a Tribunal which shall, after hearing all the parties, make such order or orders as it deems fit.

17. Prohibition against foreign currency rent payments

A landlord shall not demand the payment of rent in a foreign currency for any type of rented premises.

18. Advance rent payments

(1) A landlord shall not demand the payment of advance rental money beyond one month for low cost rental premises.

(2) For the purpose of sub-section (1), low cost rental premises means premises that cost three thousand dalasis and below per month.

19. Notice of rent increments

A landlord shall not increase the amount of rent for his or her rental premises unless he or she gives the tenant at least three months written notice of such increment.

PART V - MISCELLANEOUS

20. Appeal and stay of execution

(1) A person who is not satisfied with a decision of a Tribunal may-

(a) within thirty days of the decision or order, apply to the Tribunal for a review of the decision or order; or

(b) appeal to the High Court.

(2) Where a person makes an application for review or lodges an appeal under sub-section (1), a Tribunal may make an order staying execution of its decision or order which is the subject of the application or appeal, pending the outcome of such application or appeal.

21. Offences

A person who contravenes any provision of this Act commits an offence and is liable on conviction to a fine not exceeding fifty thousand dalasis.

22. Regulations

The Minister may make regulations-

(a) regulating further the relationship between landlords and tenants;

(b) enhancing the powers of Tribunals for the efficient and effective implementation of the provisions of this Act; and

(c) prescribing such matters as may be prescribed under this Act.

23. Repeal and savings

(1) The Rent Tribunal (Establishment) Act, 2010is repealed. (2) Notwithstanding the repeal-

(a) any subsidiary legislation made under the repealed Act, in so far as it is not inconsistent with this Act, shall

remain in operation until revoked; and

(b) any proceedings commenced under the repealed law shall be deemed to validly commenced.

SCHEDULE I
(section 12)

APPLICATION FORM FOR THE REGISTRATION OF RENTAL PREMISES

Rent Tribunal

(Address)

1. Name and address of applicant (s)

2. Name and address of owner (s) of property

3. Number and address of property to be let (where applicable)

4. Type of property to be let (state whether house, room, flat, compound, or other (please specify)

5. **How many of the type of property to** be **let are available in the same place?**

6. **Age of property since built (support answer with documentary evidence**, **if any)**

7. **Type of facilities provided in the property (support answer with documentary evidence, if any)**

8. Are the facilities in the property to be shared by tenants?

Yes/No.....

If yes, approximately by how many tenants?

9. Does the applicant or owner live in the same property to be **let?**

Yes/No.....

10. Nature of property (state whether cement block house, **mud block house, krinting or other type (please specify**) **and the type of** roofing **and ceiling, if any)**

11. The ratable value of the property or the rent payable for the Property

12. Have all rates in respect of the property been fully paid? Yes/No .....

(support answer with documentary evidence

If No, state year (s) and amount of arrears owing

13. Is any commercial activity carried on the property or on a property adjacent or close to your property?

14. What is the legal status of the property?

Freehold

Leasehold

Customary Tenure

Others (please specify)

15. Additional information about the property which you would **like the Tribunal to know.**

Signature of **Applicant**

Date

SCHEDULE ||

(section 12) FEES

FOR BANJUL**, KANIFING MUNICIPALITY AND WEST COAST REGION**

1. **Application form**

2. **Registration**

D50:00

D150:00

3. **Application for review of decision or order** **D100:00**

FOR LOWER RIVER**, CENTRAL RIVER, NORTH BANK** AND **UPPER RIVER REGIONS**

1. **Application form**

2. Registration

.D25:00

D75:00

3. **Application for review of decision or order** **D100**:00

PASSED **in the National Assembly this Twenty-Fifth day of** August **in the year of Our** Lord Two **Thousand and Fourteen**.

D. **C.** M. **Kebbeh**

Clerk of **the** *National* ***Assembly***.

THIS **PRINTED IMPRESSION has been carefully** compared **by me with** the Bill which has **passed** in **the** National Assembly, **and** found by **me** to be **a true** and correct copy **of the said Bill**.

D. C. M. **Kebbeh** ***Clerk*** of ***the*** *National* ***Assembly***.

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